

25PSCV01282 25PSCV01282

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Case Number: 25PSCV01282 Hearing Date: August 12, 2026 Dept: H

Vasquez v. Ford

Motor Company, et al.,

Case No. 25PSCV01282

ORDER ON MOTION

TO COMPEL FURTHER RESPONSES

Plaintiff

Andrea Vasquez's Motion for Order Compelling Further Responses to Requests for Production

[Set One] is GRANTED

in part (i.e., as to Nos. 45 & 46) and DENIED in part (i.e., at to Nos.

16-18 & 20-30). Ford is to provide further, Code-compliant responses to

Nos. 45 & 46 within 20 days from the date of the hearing. Plaintiff's

request for sanctions is DENIED.

Background

Plaintiff

Andrea Vasquez ("Plaintiff") alleges as follows:

On December 19, 2024, Plaintiff

entered into a warranty contract with Ford Motor Company ("FMC") regarding a 2024 Ford Mach-E ("subject vehicle"). The subject vehicle suffers from various defects and has not been repaired after a reasonable number of attempts.

On

April 10, 2025, Plaintiff filed a complaint, asserting causes of action against FMC, Puente Hills Ford, LLC dba Puente Hills Ford ("Puente Hills Ford") and

Does 1-10 for: (1) Violation of Song-Beverly Act—Breach of Express Warranty, (2) Violation of Song-Beverly Act—Breach of Implied Warranty, and (3) Negligent Repair.

On

July 28, 2026, the Court granted a stipulated protective order.

The

Final Status Conference is set for April 20, 2027.

Trial

is set for May 4, 2027.

Legal

Standard

“[T]he demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply:

(1) A statement of compliance with the demand is incomplete.

(2) A representation of inability to comply is inadequate, incomplete, or evasive.

(3) An objection in the response is without merit or too general.”

(Code Civ. Proc., § 2031.310, subd. (a).)

The motion must include a meet and confer declaration which “state[s] facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040, 2031.310, subd. (b)(2).) “In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.” (Code Civ. Proc., § 2031.310, subd. (b)(3).)

A motion to compel further responses to a demand for

inspection or production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) If the moving party has shown good cause for the production of documents, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.)

Notice

of the motion must be provided “within 45 days of the service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing . . .” (Code Civ. Proc., § 2031.310, subd. (c).) The responding party has the burden of justifying the objections to the requests. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.)

“The

court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

Discussion

Plaintiff

moves the court for an order compelling FMC to provide further responses to Plaintiff’s Request for Production, Set No. One (i.e., Nos. 16-18, 20-30, and 45-46). Plaintiff also seeks sanctions against FMC and its counsel of record in the amount of \$2,545.00.

Plaintiff’s counsel Matias Leite (“Leite”) represents as follows:

On

November 19, 2025, Plaintiff served the subject discovery. (Leite Decl., ¶ 3, Exh. A.) FMC initially served unverified responses on December 23, 2025, then sent verified responses on January 12, 2026. (Id., ¶ 4, Exh. B.) On January 13, 2026, Plaintiff sent FMC a meet and confer letter identifying the deficiencies in FMC’s responses. (Id., ¶ 5, Exh. C.) On January 30, Plaintiff was granted an extension for the motion to compel filing deadline in order to schedule an IDC. (Id., ¶ 6, Exh. D.) On February 25, 2026, during the IDC, the Court ordered the parties to

meet and confer regarding a protective order. (Id., ¶ 7.) The parties met and conferred multiple times regarding a protective order and extended the discovery motion filing deadline to April 20, 2026, but Leite claims that FMC has “gone silent” since March 17, 2026, and has not moved for a protective order. (Id., ¶¶ 8-12.) The instant motion followed on April 20, 2026.

On June 23, 2026, FMC’s counsel states that he followed up with Plaintiff regarding the protective order. (Perez Decl., ¶ 9.) Subsequent to the filing of the motion, the parties entered into and filed a stipulated protective order with the Court. Additionally, FMC’s counsel, Raymond Perez, Jr., represents that on July 27, 2026, FMC produced any outstanding confidential documents subject to the protective order. (Perez Jr. Decl., ¶ 10.)

Request

for Production (“RFP”) No. 16 asks FMC to produce each written warranty it provided for the Subject Vehicle. RFP No. 17 asks FMC to produce all documents that constitute its warranty claims policies and procedure from 2025 to the present. RFP No. 18 asks FMC to produce its workshop manual(s) for the Subject Vehicle.

RFP No.

20 asks FMC to produce all documents that describe its procedures for evaluating and responding to California consumers’ complaint regarding its manufactured or distributed vehicles since 2025. RFP No. 21 asks FMC to produce all documents that describe the policies, procedures, and/or instructions FMC’s employees and agents should follow starting from 2025 when evaluating a customer request for a refund for money paid towards or owed on a motor vehicle it manufactured or distributed. RFP No. 22 asks FMC to produce all documents describing its policies, procedures, or guidelines for determining whether a vehicle is eligible for a vehicle repurchase pursuant to the Song-Beverly Act since 2025. RFP No. 23 seeks all training materials given to the individual(s) evaluating the vehicle repurchase request for the Subject Vehicle. RFP No. 24 asks FMC to produce all training materials for the handling of consumer requests for a vehicle repurchase in California starting in 2025. RFP No 25 seeks all scripts and flow charts that FMC used in handling California consumer requests for vehicle repurchase or replacement since 2025.

RFP Nos.

26-27, 29 ask FMC to produce all documents starting from 2025 evidencing its policies, procedures, and parameters for determining what constitutes a repair

presentation, a “non-conformity,” and/or a reasonable number of repair attempts to determine vehicle repurchase eligibility pursuant to the Song-Beverly Act. RFP No. 28 seeks all documents starting from 2025 evidencing FMC’s policies, procedures, and parameters for determining what constitutes a “substantial impairment” of a vehicle’s use, value, or safety to determine vehicle repurchase eligibility pursuant to the Song-Beverly Act. RFP No. 30 asks FMC to produce all documents evidencing its policies, procedures, and parameters for establishing the time frame to respond to a vehicle repurchase request.

RFP No.

45 seeks sufficient documents showing all of the 2024 Ford Mustang Mach E vehicle owners’ complaints that were the same or substantially similar to any of the complaints the Subject Vehicle was presented to FMC’s authorized repair facilities for during the warranty period. RFP No. 46 seeks sufficient documents showing all warranty repairs made to 2024 Ford Mustang Mach E vehicles that were the same or substantially similar to the repairs FMC’s authorized repair facilities performed on the Subject Vehicle.

Here,

the requests seek documents regarding warranties and manuals related to the Subject Vehicle, policies, procedures, guidelines, and training materials regarding vehicle repurchase requests pursuant to the Song-Beverly Act, and substantially similar complaints and warranty repairs associated with other 2024 Ford Mustang Mach E vehicles. In response to RFP Nos. 16-18 and 20-30, FMC states that it had already agreed to produce or has produced the responsive documents, including: the New Vehicle Limited Warranty Guide for the 2024 Ford Mustang Mach-E; the Workshop Manual applicable to the Subject Vehicle; Ford’s Warranty Policy and Procedural Manual; policies and procedures for Ford’s Customer Relationship Center (handles customer communications regarding vehicle concerns); and its RAV Policy and Procedure manual (re: vehicle refunds and replacements). As to RFP No. 25, FMC complied in part but stated it did not locate scripts responsive to the request after a reasonable and diligent search. FMC also provided objections to the aforementioned requests on the grounds they are overbroad, unduly burdensome, and seek irrelevant documents. Based on the produced documents and FMC’s code-compliant responses, the Court finds that further responses are not warranted for RFP Nos. 16-18 and 20-30.

As to

requests No. 45 and 46, FMC objected on the basis that the requests are overbroad, unduly burdensome, and seek irrelevant documents and information,

especially because the requests are not limited in temporal scope, to any specific component at issue, or to any specific warranty repair. FMC also objects on privilege grounds. The Court disagrees with FMC's objections based on relevance and privilege; as to relevance, the requests seek documents that could reveal whether the Subject Vehicle contained a warranty-covered defect and whether said defects or nonconformities were known prior to Plaintiff's purchase. As to the privilege objection, FMC does not adequately identify how the requests implicate privilege issues and has not provided a privilege log. However, the Court agrees with FMC that the requests as currently written are overbroad; as such, the Court limits the requests to complaints and warranty repairs associated with other 2024 Ford Mustang Mach E vehicles starting from 2024 and involving the same or substantially similar symptoms as those found in Plaintiff's repair records.

The

motion is denied in part as to RFP Nos. 16-18, 20-30, and granted in part as to RFP Nos. 45-46. FMC is to provide further, Code-compliant responses to RFP Nos. 45-46 (as narrowed by the Court) within 20 days from the date of the hearing.

Sanctions

Plaintiff

seeks sanctions against FMC and her counsel of record in the amount of \$2,545.00 [calculated as follows: 3.1 hours preparing motion and supporting documents, plus 2 hours for reviewing the opposition and drafting a reply, plus 2 additional hours preparing for/attending hearing at \$350.00/hour, plus \$60.00 in filing fees.]

Because

the motion was only partially successful, the Court determines that the imposition of sanctions against FMC would be unjust and denies the request for sanctions in its discretion.